MUTUAL NONDISCLOSURE AGREEMENT
NON-CIRCUMVENTION

THIS MUTUAL NONDISCLOSURE AND NON-CIRCUMVENTION AGREEMENT (this "**Agreement**") is made and entered into effective as of the 10 day of January 2025 (the "**Effective Date**") by and between each of the undersigned (individually referred to herein as a "**Party**" and collectively as the "**Parties**").

WHEREAS, the Parties desire to enter into discussions (the "**Discussions**") as described on the signature page hereto; and

NOW, THEREFORE, in consideration of the mutual premises, covenants, and agreements contained herein, and intending to be legally bound hereby, the Parties agree as follows:

1. Confidential Information.

(a) For the purposes of this Agreement, the term "**Confidential Information**" means and includes all information, data, and knowledge (whether in oral, written, graphic, electronic, machine-readable, or any other form) related, directly or indirectly, to and disclosed by a Party to this Agreement (the "**Disclosing Party**") or any of its parent, subsidiaries, agents, or affiliates, including, without limitation, any information that has been or is disclosed or provided to the other Party to this Agreement (the "**Recipient**"), or which is learned or obtained by the Recipient, and all copies thereof, including, without limitation, (i) all materials and other information that is marked or described as "confidential," "proprietary," or some similar designation; (ii) all designs, plans, specifications, flowcharts, software, source code, object code, techniques, algorithms, methods, models, processes, procedures, personal and real properties, formulas, discoveries, inventions, research, improvements, charts, diagrams, graphs, sketches, and writings; (iii) all technical data, research, and information; (iv) all ideas, concepts, know-how, and methodologies; (v) all financial information and data, budgets, forecasts, customer lists, supplier lists, marketing techniques, strategies and materials, marketing and development plans, pricing policies, and other non-public information; (vi) all information which constitutes a "trade secret" under applicable law ("**Trade Secrets**"); and (vii) all materials of any nature prepared by the Recipient, or others for the Recipient, containing or reflecting any portion of the Confidential Information of the Disclosing Party. The Parties further agree that the existence of this Agreement constitutes Confidential Information and neither Party will disclose its execution of this Agreement or the existence of discussions with the other Party.

(b) Notwithstanding the foregoing, Confidential Information does not include information which (i) at the time of disclosure or thereafter, becomes a part of the public domain (other than as a result of a breach of this Agreement or other willful act or omission on the part of the Recipient), (ii) at the time of disclosure, the Recipient can clearly establish was independently known to Recipient, (iii) is independently developed by the Recipient without any use of or reference to any Confidential Information of the Disclosing Party, or (iv) is disclosed to Recipient by a third party who has no duty of confidentiality to the Disclosing Party. All Confidential Information of the Disclosing Party is and at all times will remain the exclusive property of the Disclosing Party.

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2. Restrictions on the Use of Confidential Information.

(a) For a period of two (2) years from the Effective Date, Recipient agrees to maintain the strict confidentiality of the Confidential Information of the Disclosing Party and agrees that it shall not, without the prior written consent of the Disclosing Party in each instance, (i) transfer, publish, display, disclose, or otherwise make available any such Confidential Information, directly or indirectly, to any third party or person except as expressly permitted by Paragraph 2(b) or 2(c) below, (ii) use any such Confidential Information for any purpose other than in direct connection with Recipient's review and evaluation, in connection with a potential transaction ("**Transaction**") involving the Parties, (iii) remove any proprietary notices from originals or copies of any such Confidential Information, or (iv) take any other action with respect to any such Confidential Information that is inconsistent with the confidential and proprietary nature thereof. The Recipient also agrees to use at least the same standard of care (but no less than reasonable care) to protect the Disclosing Party's Confidential Information as the Recipient uses to protect its own Confidential Information.

(b) The Recipient may disclose the Confidential Information of the Disclosing Party only to such of the Recipient's affiliates and its and their respective officers, directors, managers, employees, consultants, agents, counsel, accountants, and financing sources (collectively, "**Representatives**") who have a need to have access to the Confidential Information of the Disclosing Party solely to enable Recipient's review and evaluation; provided that (i) the Recipient informs its Representatives of the confidential and proprietary nature of the Disclosing Party's Confidential Information and (ii) the Recipient requires each Representative to use and protect the Disclosing Party's Confidential Information as required by this Agreement. The Recipient shall ensure the observance and proper performance by all of its Representatives of all of the terms and conditions of this Agreement. The Recipient shall be fully liable and responsible for the disclosure or use of any Confidential Information of the Disclosing Party by any of the Recipient's Representatives in a manner other than as expressly permitted by this Agreement.

(c) In the event that the Recipient or anyone to whom the Recipient transmits or provides Confidential Information pursuant to this Agreement becomes legally compelled (by deposition, interrogatory, subpoena, civil investigation, demand, or similar process) to disclose any of the Confidential Information of the Disclosing Party, Recipient shall provide the Disclosing Party with prompt written notice so that the Disclosing Party may seek a protective order or other appropriate remedy, or waive compliance with the provisions of this Agreement. In the event the Disclosing Party is unable to obtain such protective order or other appropriate remedy, Recipient may furnish only that portion of the Disclosing Party's Confidential Information which the Recipient is advised by its legal counsel is legally required.

3. Return of Confidential Information. Upon the request of the Disclosing Party, the Recipient shall promptly either (a) return to the Disclosing Party all Confidential Information of the Disclosing Party and copies thereof in the Recipient's possession or in the possession of any Representative or Representatives or (b) at the Disclosing Party's written request, destroy or cause to be destroyed all Confidential Information of the Disclosing Party and copies thereof in the Recipient's possession or in the possession of any Representative or Representatives, and certify the same in writing to the Disclosing Party. Notwithstanding the return or destruction of any

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Confidential Information, the Recipient and its Representatives shall continue to be and remain fully bound by this Agreement.

4. Injunctive Relief. The Recipient acknowledges that there is a substantial likelihood that the breach of this Agreement by the Recipient or any of its Representatives would cause irreparable injury to the Disclosing Party, and that there is a substantial likelihood that money damages would be an inadequate remedy for the injuries and damage that would be suffered by the Disclosing Party in the case of the breach of this Agreement by Recipient or any of its Representatives. Therefore, the Disclosing Party, in addition to any other remedies it may have at law or in equity, will be entitled to seek injunctive and other equitable relief to enforce the provisions of this Agreement.

5. Nature of Confidential Information.

(a) While each Party believes that the Confidential Information that it will provide under this Agreement will be material and accurate for the purposes of an evaluation of a Transaction, neither Party (nor any of its officers, directors, employees, agents, or affiliates) makes any representations or warranties to the other Party or to any other person or entity with respect to the accuracy or completeness of the Confidential Information, and all Confidential Information is provided "AS IS."

(b) Neither this Agreement, nor any disclosure of Confidential Information hereunder, in any way: (i) obligates either Party to disclose or receive any Confidential Information, perform any work, or enter into any license, business engagement, or other agreement; (ii) limits either Party from developing, manufacturing, or marketing products or services which may be competitive with those of the other Party (provided that such activities do not in any way violate this Agreement); or (iii) limits either Party from entering into any business relationship with any other parties (provided that this Agreement is not violated in any way).

6. Governing Law and Jurisdiction. This Agreement will be governed by and construed in accordance with the laws of the Province of Alberta. Any claim arising out of or relating to this Agreement or its subject matter or any right or obligation created by this Agreement, irrespective of legal theory or claims underlying such dispute, will be brought and determined exclusively in courts in the Province of Alberta. Each of the Parties to this Agreement hereby irrevocably submits to the jurisdiction of courts in the Province of Alberta and agrees not to challenge jurisdiction or choice of venue for this Agreement, its subject matter, or any right, obligation, or dispute arising hereunder. The Parties agree that this Agreement is performable in Alberta.

7. General. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof. This Agreement cannot be modified or amended except by a writing executed and delivered by both Parties. This Agreement may be executed in any number of counterparts, each of which when so executed and delivered will be deemed an original, but all of which will together constitute one and the same agreement. This Agreement may be executed and delivered by facsimile, email, or other electronic means. If any provision of this Agreement is held to be invalid or unenforceable, then, to the extent that such invalidity or unenforceability will not deprive either Party of any material benefit intended to be provided by this Agreement, the

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remaining provisions of this Agreement will remain in full force and effect and will be binding upon the Parties. No failure or delay in exercising any right, power, or privilege hereunder will operate as a waiver thereof, nor will any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power, or privilege hereunder.

8. Non-Circumvention. The Parties agree that each Party shall be entitled to compensation for its introduction and consulting purposes in regard to disclosing information, location and introduction to third parties (each, a "Referred Party"). Compensation shall be negotiated through a subsequent agreement between the Parties for the introduction and identification of a Referred Party. Each Party agrees that it will not enter into an agreement for the lease or purchase of the introduced property or Referral Party without first entering into a prior written agreement with the other Party relating to its compensation for services. The Parties shall not in any way whatsoever circumvent or attempt to circumvent each other's rights pursuant to this Agreement.

9. Termination. The Parties' respective duties and obligations under this Agreement will terminate two (2) years after the Effective Date. Notwithstanding the foregoing, each Party's obligations with respect to the other Party's Trade Secrets will continue after the end of such two-year period for so long as such information continues to constitute a trade secret under applicable law.

WITH WITNESS WHEREOF, the Parties have executed and delivered this Mutual Nondisclosure Agreement as of the Effective Date.

Party Name: NRG Bloom

By: _____
Its: President & CEO

Party Name: TON Infrastructure Ltd

By: Marley Broda
Its: CEO

The Parties hereby desire to set forth their agreement and understanding with respect to any Confidential Information disclosed by either Party during the course of general business discussions, property related discussions and crypto currency mining site location services.

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